



**Order under Section 69
Residential Tenancies Act, 2006**

Citation: CAPREIT LIMITED PARTNERSHIP v ESTEBAN, 2025 ONLTB 96337

Date: 2025-12-18

File Number: LTB-L-086526-25

In the matter of: 607, 500 MURRAY ROSS PKY TORONTO ON M3J2Z3

Between: CAPREIT LIMITED PARTNERSHIP Landlord

And

LESTER ESTEBAN Tenant

CAPREIT LIMITED PARTNERSHIP (the 'Landlord') applied for an order to terminate the tenancy and evict LESTER ESTEBAN (the 'Tenant') because the Tenant did not pay the rent that the Tenant owes.

This application was heard by videoconference on December 11, 2025.

Only the Landlord's Representative, Jason Paine attended the hearing.

The Tenant was not present or represented at the hearing although properly served with notice of this hearing by the LTB. There was no record of a request to adjourn the hearing. As a result, the hearing proceeded with only the Landlord's evidence.

Determinations:

1. The Landlord served the Tenant with a valid Notice to End Tenancy Early for Non-payment of Rent (N4 Notice). The Tenant did not void the notice by paying the amount of rent arrears owing by the termination date in the N4 Notice or before the date the application was filed.
2. As of the hearing date, the Tenant was still in possession of the rental unit.

3. The lawful rent is \$1,530.87. It is due on the 1st day of each month.
4. Based on the Monthly rent, the daily rent/compensation is \$50.33. This amount is calculated as follows: $\$1,530.87 \times 12$, divided by 365 days.
5. The Tenant has paid \$1,530.86 to the Landlord since the application was filed.
6. The rent arrears owing to December 31, 2025 are \$3,842.63.
7. The Landlord incurred costs of \$186.00 for filing the application and is entitled to reimbursement of those costs.
8. The Landlord collected a rent deposit of \$1,530.87 from the Tenant and this deposit is still being held by the Landlord. The rent deposit can only be applied to the last rental period of the tenancy if the tenancy is terminated.
9. Interest on the rent deposit, in the amount of \$36.17 is owing to the Tenant for the period from January 1, 2025 to December 11, 2025.
10. I have considered all of the disclosed circumstances in accordance with subsection 83(2) of the *Residential Tenancies Act, 2006* (the 'Act'), including whether the Landlord attempted to negotiate a repayment agreement with the Tenant and find that it would be unfair to grant relief from eviction pursuant to subsection 83(1) of the Act.

It is ordered that:

1. The tenancy between the Landlord and the Tenant is terminated unless the Tenant voids this order.
2. **The Tenant may void this order and continue the tenancy by paying to the Landlord or to the LTB in trust:**
 - \$4,028.63 if the payment is made on or before December 29, 2025. See Schedule 1 for the calculation of the amount owing.
3. The Tenant may also make a motion at the LTB to void this order under section 74(11) of the Act, if the Tenant has paid the full amount owing as ordered plus any additional rent that became due after December 29, 2025 but before the Court Enforcement Office (Sheriff) enforces the eviction. The Tenant may only make this motion once during the tenancy.
4. **If the Tenant does not pay the amount required to void this order the Tenant must move out of the rental unit on or before December 29, 2025.**
5. If the Tenant does not void the order, the Tenant shall pay to the Landlord \$1,484.35. This amount includes rent arrears owing up to the date of the hearing and the cost of filing the application. The rent deposit and interest the Landlord owes on the rent deposit are

deducted from the amount owing by the Tenant. See Schedule 1 for the calculation of the amount owing.

6. The Tenant shall also pay the Landlord compensation of \$50.33 per day for the use of the unit starting December 12, 2025 until the date the Tenant moves out of the unit.
7. If the Tenant does not pay the Landlord the full amount owing on or before December 29, 2025, the Tenant will start to owe interest. This will be simple interest calculated from December 30, 2025 at 4.00% annually on the balance outstanding.
8. If the unit is not vacated on or before December 29, 2025, then starting December 30, 2025, the Landlord may file this order with the Court Enforcement Office (Sheriff) so that the eviction may be enforced.
9. Upon receipt of this order, the Court Enforcement Office (Sheriff) is directed to give vacant possession of the unit to the Landlord on or after December 30, 2025.

December 18, 2025

Date Issued

Sandra Macchione

Vice Chair, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor Toronto
ON M7A 2G6

If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.

In accordance with section 81 of the Act, the part of this order relating to the eviction expires on June 30, 2026 if the order has not been filed on or before this date with the Court Enforcement Office (Sheriff) that has territorial jurisdiction where the rental unit is located.

Schedule 1
SUMMARY OF CALCULATIONS

A. Amount the Tenant must pay to void the eviction order and continue the tenancy if the payment is made on or before December 29, 2025

Rent Owing To December 31, 2025	\$5,373.49
Application Filing Fee	\$186.00
Less the amount the Tenant paid to the Landlord since the application was filed	- \$1,530.86
Total the Tenant must pay to continue the tenancy	\$4,028.63

B. Amount the Tenant must pay if the tenancy is terminated

Rent Owing To Hearing Date	\$4,396.25
Application Filing Fee	\$186.00
Less the amount the Tenant paid to the Landlord since the application was filed	- \$1,530.86
Less the amount of the last month's rent deposit	- \$1,530.87
Less the amount of the interest on the last month's rent deposit	- \$36.17
Total amount owing to the Landlord	\$1,484.35
Plus daily compensation owing for each day of occupation starting December 12, 2025	\$50.33 (per day)
**Ongoing daily compensation continues to accumulate until the total amount owing (excluding costs) is \$50,000.00.	